
Journal

1967 PLD 343

Court

HIGH COURT OF WEST PAKISTHAN

Date

1967-05-19

Appeal No.

CRIMINAL REFERERCE NO. 84 OF 1967

Judge

FAIZULLAH KHAN

Parties

NOOR ZAMAN (PETITIONER) VERSUS MST. SAIDANO (RESPONDENT)

Lawyers

MUHAMMAD AFZAL KHAN BANGASH FOR PETITIONER. RESPONDENT IN PERSON.

Statutes

CRIMINAL PROCEDURE CODE (V OF 1898) - S. 488 WEST PAKISTAN FAMILY COURTS ACT (XXXV OF 1964) - SS. 5 AND 20 WEST PAKISTAN FAMILY COURTS RULES, 1965 - R. 22
CIVIL PROCEDURE CODE (V OF 1908) - S. 9. INTERPRETATION OF STATUTES

Judgment

Judgment This is a reference by the Sessions Judge, Peshawar, recommending that the order dated 10th November 1966, recorded by Mr.

Zaheer Sajjad, Magistrate, 1st Class, Nowshera, awarding maintenance of Rs. 30 p.m. to Mst. Saidano, wife of the petitioner, be set aside in view of section 5 of the West Pakistan Family Courts Act, 1964 (hereinafter to be referred to as Family Courts Act) under which the Family Courts have exclusive jurisdiction to try and hear the cases of maintenance. It is important to mention here that the learned Magistrate by the same impugned order dated 10th November 1966, also directed the payment of Rs. 10 each to the two minor children, aged about 6 or 7 years, on the application moved by the respondent under section 488, Cr. P.

C. on 6th July 1966, but strangely enough the learned Sessions Judge recommended the setting aside of impugned order partially in regard to the maintenance of the wife and not in regard to the children.

2. The reference raises an important question, as to whether under the provisions of the Family Courts Act as amended up to date and the West Pakistan Family Courts Rules, 1965 (hereinafter to be referred to as the Rules), the jurisdiction of Magistrates, First Class in the district of Peshawar to pass order of maintenance both in regard to the wife and the children under section 488, Cr. P. C. has been ousted by the Family Courts Act and the Rules, and Family Courts have exclusive jurisdiction to entertain, hear and adjudicate upon matters pertaining to maintenance.

3. To resolve this question, some of the provisions of the Family Courts Act as amended up to date and rule 22(1) of the Rules are to be examined. The Family Courts Act was promulgated on 18th July 1964. Under section 1(2), the Family Courts Act extended "to the whole of the Province of West Pakistan, except the Tribal Areas". Under subsection the Act "shall come into force in such area or areas and on such date or dates as Government may, by notification in the official Gazette, specify in this behalf". By Notification No. Integ. 10-31/64(1), the Family Courts Act was extended to Peshawar District. Section 3 empowers the Government to "establish one or more Family Courts in each District or at such other place as it may deem necessary and appoint a Judge in each of such Courts". Section 4 directs that "no person shall be appointed as a Judge of a Family Court unless he is or has been a District Judge or is or has been a Senior Civil Judge or Civil Judge, First Class". Then comes section 5 which is most material provision under which exclusive jurisdiction was conferred on the Family Courts in regard to matters specified in the Schedule. Section 5 reads- "Subject to the provisions of the Muslim Family Laws Ordinance, 1961, and the Conciliation Courts Ordinance, 1961, the Family Courts shall have exclusive jurisdiction to entertain, hear and adjudicate upon matters specified in the Schedule." 4. At page 310 of the West Pakistan Statutes, 1965,* six subjects are listed and item No. 3 is maintenance. Section 20 of the Family Courts Act is in the following terms "Government may invest any Judge of a Family Court with powers of Magistrate, First Class to hear the case under section 488 of the Code of Criminal Procedure, 1898." 5. By Gazette Notification No. Integ. 10-31/61/1, dated 5th April 1966, the Governor of West Pakistan, in exercise of the powers conferred by section 20 of the Family Courts Act "invested all the Judges of the Family Courts with powers of Magistrates of First Class to make orders for maintenance under section 488 of the Code of Criminal Procedure, 1898 (V of 1898)." 6. The West Pakistan Family Courts Rules, 1965 were gazetted in the West Pakistan Extraordinary on 2nd November 1965. The West Pakistan Family Courts (Amendment) Ordinance (X of 1966), (hereinafter to be referred to as the Ordinance) was promulgated on 4th April 1966, under which certain amendments were introduced in the provisions of the Family Courts Act. By section 2 of this Ordinance, subsections (4) and (5) were

added to subsection (3) of the Family Courts Act, but they are not material for discussion in hand. By section 5 of the Ordinance, section 4 of the Family Courts Act was substituted, so as to designate a Civil Judge as Family Court. The Rules were framed on the 2nd November 1965. Under rule 22(1), the benefit of section 5 of the Limitation Act was extended to the appeals which were to be preferred to the High Court under section 14 of the Family Courts Act.

7. It will be manifest from the provisions of the Family Courts Act as amended up to date and the Rules referred to above that under section 5 read along with section 20 of the Act and the Notifications under which the Family Courts were notified t as Magistrate for the purpose of section 488, Cr. P. C. that exclusive jurisdiction was conferred on the Family Courts to hear, try and adjudicate on the six matters listed in the Schedule including "maintenance". The word "maintenance" has not been defined in the Rules or the Act, but section 5 of the Family Courts Act read with section 20 makes it abundantly clear that the term "maintenance" includes orders for maintenance under section 488, Cr. P. C. after the notification having been made conferring magisterial first class powers on the Family Courts for the purpose of section 488, Cr. P. C. It is well-established principle of law that where special Tribunal is created, then by B necessary implication the jurisdiction of the ordinary Courts is excluded even in the absence of the express words ousting the "PLD 1965 West Pakistan Statutes, 310 jurisdiction of the ordinary Courts. It will be convenient here to state that the words "exclusive jurisdiction to entertain, hear and adjudicate upon matters occurring in section 5 expressly oust the jurisdiction of the ordinary Courts, in regard to the six matters enumerated in the Schedule including the "maintenance", and if any doubt is left about exclusive jurisdiction in regard to order of maintenance under . section 488, Cr. P. C., the same is resolved by sections 14 and 20 of the Family Courts Act. Under the former, the right of appeal is given to the High Court, and under the latter, the Family Courts are empowered as Magistrates First Class to decide the matter of maintenance.

8. It follows from the above discussion that after extension of the Family Courts Act to the Peshawar District and the further fact that the Judges of the Family Courts under section 20 were also designated Magistrates, First Class for the purpose of scction 488, Cr. P. C., the jurisdiction of the Magistrate under section 488, Cr. P. C., and for that matter that of the Civil Court qua "maintenance", is completely ousted. In this view of the matter the order of maintenance passed by the learned Magistrate dated 10th November 1966, both in regard to wife as also the children is without jurisdiction, and consequently of no legal effect. I accordingly accept this reference not only in regard to the order of maintenance of the wife, but also in regard to the two minor children. The application of maintenance may be returned to the petitioner for presentation to the Family Court having the jurisdiction.

9. The original application should be returned to the respondent and a copy of the same retained on the file.

. Reference accepted.

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